

Ralph Lauren Boca — CM Form Redline

Town Center at Boca Raton · Simon 1062 · ~3,384 sf · Cost-plus CM+GC, open book

Source form: CM and Construction Agreement (Sept 2024) · Owner's rep: Charrette · GC: Lux Brand Co.

Date: 2026-09-04

Conclusions

This package marks up **their** blank Sept 2024 CM form. It does not replace the agreement with a new document. Preferred inserts fill blanks, strike owner-favorable clauses, and drop Exhibit L rates from Deal-Lock.

- **Compensation** — Strike FIXED PRICE COMPENSATION. Insert cost-plus CM+GC open book. CM fee **10%** of Cost of Work.
- **Payment** — Opening ask **net 30** after Owner's Rep + Architect approve a complete Application. Settlement band **net 45**. Monthly percent-complete — not 30/30/30/10.
- **Staffing / duration** — Superintendent **\$4,400/week × 21 weeks** (Locked). PM **Shawn Rasmusen — \$3,500/week + 4 trips** (Set). Parking **5 × \$250 = \$1,250** (Set).
- **Insurance / pre-con** — Insurance **1.5%** (not WC). WC **1.2%** on payroll only. Pre-con **1%** payable first pay app / NTP.
- **Luke Signs before insert** — Art. 3.6 LDs (\$1,000/day + 5% cap **or** \$0/actual). Builder's Risk who-buys. Address 600 vs 6000 Glades.

How to read the markups

LOCKED Deal-Lock — insert as written.

PREFERRED Ask / negotiate — paste-ready language for their article.

LUKE SIGNS Do not fill until Luke Decides.

STRIKE / FIGHT Form language that fights the deal.

1. Compensation — Article 4 / Exhibit L

Form: "FIXED PRICE COMPENSATION ... the fixed fee ... (the Contract Sum)" and blank Exhibit L rate card.

- **STRIKE** **FIXED PRICE COMPENSATION** — replace with cost-plus CM+GC, open book. Subcontractor bids open-book pass-through; CM fee is the agreed percentage on Cost of Work.
- **LOCKED** **CM fee** — 10% of Cost of Work.
- **LOCKED** **CO markup** — 10% on change-order dollars only; **one-or-the-other with CM 10%** (not stacked).
- **LOCKED** **Insurance** — 1.5% of Cost of Work (do not fold WC into this).

- **LOCKED** **Workers' Compensation** — 1.2% of payroll only.
- **LOCKED** **Pre-construction** — 1% of project total, payable with first Application / NTP.
- **LOCKED** **Superintendent** — \$4,400 per week × 21 weeks.
- **LOCKED** **Project Manager** — Shawn Rasmusen — \$3,500 per week + 4 trips (Set).
- **LOCKED** **Parking** — 5 × \$250 = \$1,250 (Set from 21-week duration).
- **LUKE SIGNS** Art. 2.19 attendance — PM and super on the Work as required / at all times (soften if needed).

2. Payment — Articles 6.1 / 6.3 / 6.4

Form: CM fee within sixty (60) days; progress within [_____] days less 10% retainage; 30/30/30/10 draw language; final within sixty (60) days; acceptance of final = waiver of all Contractor claims.

- **PREFERRED** **Progress method** — Monthly percent-complete Applications (prefer Application by the first of the month). Strike 30/30/30/10 as the controlling draw method.
- **PREFERRED** **Progress / fee timing** — Owner pays within **thirty (30) days** after Owner's Representative and Architect approve a complete Application. **Opening ask = net 30. Settlement band = net 45.** Not net 90.
- **PREFERRED** **Retainage** — Ten percent (10%) on **subcontractor Cost of Work only. No retainage on the CM Services Fee** — fee pays current with each Application. Label: Negotiate (not a claim that blanket fee retainage is nonstandard industry-wide).
- **PREFERRED** **Final payment** — Within thirty (30) days after final Certificate and closeout deliverables. Acceptance of final payment waives claims **except those previously made in writing and identified as unsettled** on the final Application; reserved claims may be sued within one (1) year of final payment.
- **STRIKE** Blanket "waiver of all claims by the Contractor" on final payment.
- **PREFERRED** **Persistent late payment** — After written notice, right to suspend for nonpayment of undisputed sums; liquidated damages off during permitted suspension; equitable time and reasonable demobilization / remobilization.

3. Schedule / LDs — Articles 3.1 / 3.6 / Exhibit E

- **LOCKED** **Duration** — 21 weeks. Do not reopen 13-week or 19.5-week intake debates.
- **LUKE SIGNS** **Art. 3.6** — Pick one only: (A) **\$1,000 per calendar day**, capped at **5% of Contract Sum**, not a penalty; **or** (B) **\$0** / actual damages only (Owner proves loss). Do not invent a third daily rate.

4. Staffing — Article 2.19

Form: PM and superintendent on the Work at all times.

- **LOCKED** Superintendent at \$4,400/week × 21 weeks on Exhibit L.
- **LOCKED** Keep PM Set rate (Shawn \$3,500/week + 4 trips) and super \$4,400×21.

- **LUKE SIGNS** Soften dual full-time seat if needed to “as required by the Work.”

5. Changes / claims — Article 5

- **LOCKED** **Change Orders** — Written CO with time and cost impact before proceed. Markup 10% on change dollars only — one-or-the-other with CM 10% (not stacked).
- **PREFERRED** **General claims** — Twenty-one (21) days after occurrence or first recognition.
- **PREFERRED** **Delay notice** — Negotiate off form’s 5-day / 10-day detail toward something field can hit (optional 7/14), or keep 5 if Luke will not fight. Do not pretend there is no shot clock.

6. Indemnity — Article 10.1

Form: broad indemnity of Owner, Architect, Landlord, lender, and anyone Owner agreed to indemnify.

- **PREFERRED** Defend and indemnify **Owner, Architect, and Architect’s consultants only**, to the extent caused by negligent acts or omissions of Contractor or its subcontractors.
- **STRIKE / LIMIT** Landlord, lender, and “anyone Owner agreed to indemnify” unless that list is attached as an exhibit.
- **PREFERRED** Dollar limitation — Preferred ask / Fla. Stat. § 725.06 conversation only; not a Deal-Lock number.

7. Insurance — Exhibit C

- **PREFERRED** **Builder’s Risk** — Confirm who purchases. Form says Contractor-purchased. Align to who can place the policy and correctly name Owner / landlord / lender. Do not assume GC.
- Attach landlord Insurance Requirements. COI remains a condition precedent to progress payment as form states — flag cash impact.
- **LOCKED** Rate card insurance 1.5% and WC 1.2% payroll on Exhibit L (separate from Exhibit C limits).

8. Liens — Exhibit H / Article 6.9

- **PREFERRED** Replace Exhibit H “any and all liens” form with **Florida statutory** progress and final waiver forms (Fla. Stat. § 713.20).
- Align lien discharge practice with Florida clocks; keep notice to Owner.

9. Permits / exclusions

- **PREFERRED** Permits excluded from Contract Sum; invoiced separately; no markup (align form “sole expense” language to this practice).

Exhibit L — Rate card (insert)

Item	Rate / basis	Status
------	--------------	--------

Compensation type	Cost-plus CM+GC, open book	LOCKED
Weekly superintendent	\$4,400 × 21 weeks	LOCKED
Project Manager	Shawn Rasmusen — \$3,500/week + 4 trips	LOCKED
Parking	5 × \$250 = \$1,250	LOCKED
CM fee	10% of Cost of Work	LOCKED
CO markup	10% on change dollars only — one-or-the-other with CM 10% (not stacked)	LOCKED
Insurance	1.5% of Cost of Work	LOCKED
Workers' Compensation	1.2% of payroll	LOCKED
Pre-construction	1% of project total — first pay app / NTP	LOCKED
Progress payment days	30 after approval (ask) / 45 settlement band	PREFERRED
Retainage	10% on sub Cost of Work only; none on CM fee	PREFERRED
Duration	21 weeks	LOCKED
Art. 3.6 LDs	\$1,000/day + 5% cap or \$0/actual	LUKE SIGNS
Builder's Risk purchaser	Confirm Owner vs Contractor	LUKE SIGNS
Sprinkler shutdown count	Unit \$250 each; count OPEN	OPEN

GC/fee/pre-con rollup with trades \$0 (not a bid total): **\$104,056.26**.

Luke Sign / Decide before Charrette send

1. Art. 3.6 — \$1,000/day + 5% cap, or \$0/actual.
2. Builder's Risk — who buys.
3. 600 vs 6000 Glades — do not pick in this draft.
4. Authorize send of this redline + Exhibit L ask sheet — **not yet**.

Ask sheets (same folder / site)

- Payment-terms cash impact one-pager (illustrative open-book TI; opening ask net 30 / settlement band net 45).
- Issue Log (INTERNAL Preferred tracking).
- Exhibit L rate card draft.

Lux Brand Co. · Discussion draft for Luke Sign/Decide · Markups to Charrette Sept 2024 CM form only · Not a commitment until executed · Zero outbound to Charrette / Landis / Claudia / RL until Luke authorizes.

Filename for site link: RL-Boca-CM-FORM-REDLINE-2026-09-04.pdf